

Mallappa S/O Channappa Malli And Anr vs Padmawwa W/O Revansiddappa Umanabadi ... on 26 September, 2024

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NC: 2024:KHC-K:7412
RSA No. 7119 of 2013

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 26TH DAY OF SEPTEMBER, 2024

BEFORE
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE

REGULAR SECOND APPEAL NO. 7119 OF 2013 (PAR)

BETWEEN:

1. MALLAPPA S/O CHANNAPPA MALLI,
AGE: 47 YEARS, OCC: AGRICULTURE,
R/O MANAGOLI TQ. BASAVANABAGEWADI,
DIST. BIJAPUR (HE HIMSELF CALLING AS
MALLAPPA S/O REVANSIDDAPPA UMANBADI)
2. NEELAMMA W/O CHANNAPPA MALLI,
AGE: 61 YEARS, OCC: HOUSEHOLD,
R/O MANAGOLI TQ. BASAVANABAGEWADI,
DIST. BIJAPUR (SHE HERSELF CALLING AS
NEELAMMA W/O CHANNAPPA UMANBADI).

Digitally signed
by RENUKA
Location: HIGH
COURT OF
KARNATAKA

(BY SRI J. AUGUSTIN, ADVOCATE)

...APPELLANTS

AND:

1. PADMAWWA W/O REVANSIDDAPPA UMANBADI,
AGE: 57 YEARS, OCC. HOUSEHOLD WORK,
R/O MANAGOLI, TQ. BASAVANABAGEWADI
DIST. BIJAPUR -586 102.
2. YALLAPPA S/O REVANSIDDAPPA UMANBADI,
AGE: 26 YEARS, OCC. AGRICULTURE,
R/O MANAGOLI TQ. BASAVANABAGEWADI,
DIST. BIJAPUR- 586 102.

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3. LAXMIBAI W/O BHIMAPPA SITIMANI,
AGE: 33 YEARS, OCC. HOUSEHOLD,
R/O NAGASAMPIGE, TQ. & DIST. BAGALKOT.
4. REVANSIDDAPPA S/O BHIMAPPA UMANABADI,
AGE: 65 YEARS, OCC. AGRICULTURE,
R/O MANAGOLI, TQ. BASAVANABAGEWADI,
DIST. BIJAPUR-586 102.

NOTE. R1 TO R3 ARE ALREADY ON RECORD,
HENCE TREATED R1 TO R3 AS LRS OF DECEASED
OF RESPONDENT NO.4.
AMENDED AS PER ORDER DATED 22.02.2021
OF THIS HON'BLE COURT.

...RESPONDENTS

(BY SRI BAPUGOUDA SIDDAPPA, ADVOCATE FOR R1 AND R2;
SRI G. B. YADAV, ADVOCATE FOR R3 AND R4)

THIS RSA IS FILED UNDER SECTION 100 OF CPC,
PRAYING TO ALLOW THE APPEAL AND SET ASIDE THE
JUDGMENT AND DECREE PASSED BY THE FIRST APPELLATE
COURT IN RA.NO.88/2010 DATED 04.01.2013 AND THEREBY
CONFIRM THE JUDGMENT AND DECREE PASSED BY THE CIVIL
JUDGE (SR.DN.) BASAVANA BAGEWADI DATED 08.04.2009.

THIS APPEAL, COMING ON FOR FURTHER DICTATION,
THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE) This appeal is against the divergent finding in a suit for partition and separate possession. O.S. No.34/2006 on the file of the Senior Civil Judge Basavana Bagewadi is NC: 2024:KHC-K:7412 dismissed. The plaintiffs filed an appeal in R.A.88/2010 on the file of Second Additional District Judge, Bijapur. The said appeal is allowed. In terms of the impugned judgment and decree, the First Appellate Court has declared that plaintiffs No.1 and 2 and defendants 1 and 4 are entitled to 1/4 share in suit item Nos.1 to 6 properties Aggrieved by the aforementioned judgment and decree passed by the First Appellate Court, defendants No.2 and 3 are before this Court.

2. This appeal was admitted on 09.12.2016 to answer the following substantial question of law:

1. Whether the Lower Appellate Court was justified in reversing the judgment of the trial Court and granting the decree of partition in a circumstance where the finding initially was that the marriage claimed between Revansiddappa and Padmavva was held to be void?

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2. Whether in the facts and circumstances the appreciation of the factual as well as legal position is appropriately done by the Lower Appellate Court?

3. Certain admitted facts are as under:

- Revanasiddhappa, the original defendant No.1 is said to be the propositus. According to the plaintiffs, his first wife is Padmawa, who is plaintiff No.1 and from Padmawa, Revansiddappa had a son by name Yallappa and daughter Laxmi Bai. The suit is filed by Padmawa and Yallappa and Lakshmibai is arrayed as defendant No.4.

4. The first defendant in the suit is Revansiddhappa and second defendant is Neelamma, who according to the plaintiffs is the second wife of Revanasiddhappa. The second defendant is Malappa, who according to the plaintiffs is the son of Revanasiddappa from his second wife

- Neelama. Said Neelama is arrayed as the third defendant.

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5. Admittedly, these suit properties are ancestral properties of Revanasiddhappa. The Trial Court dismissed the suit on the premise that Padmavva is not the legally wedded wife and the marriage of plaintiff No.1 is void on the premise that plaintiff No.1 married Revanasiddhappa when plaintiff No.1 was minor.

6. The First Appellate Court rejected the contention of defendants No.1 to 3 and reversed the judgment and decree of the Trial Court and decreed the suit.

7. Aggrieved by the aforementioned judgment and decree, the defendants No.2 and 3 are before this Court.

8. In this appeal filed by respondents No.2 and 3, defendant No.1 Revanasiddappa is arrayed as respondent No.4 and Revanasiddappa, respondent No.4 has died during the pendency of this appeal.

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9. Sri J Augustin, learned counsel appearing for the appellants submits that marriage of plaintiff No.1 with Revanasiddappa is void as she married during the minority and this being the position, marriage of Neelamma with Revanasiddhappa is a valid marriage and Neelamma and her son are

entitled to share in the properties. He would also submit that plaintiff No.1 did not lead marital life with Revanasiddappa and she left the company of Revanasiddappa very few days after her marriage and she was residing with her parents in her maternal home. Thereafter Revanasiddappa married Neelamma - defendant No.2 and from Neelamma he had had two children. Thereafter, Revanasiddappa was made to live with plaintiff No.1 at the instance of elders in the village and for all practical purposes, 1st plaintiff is the second wife and her children do not acquire any right in the ancestral property of Revanasiddappa.

10. Learned counsel appearing for the plaintiffs/respondents would contend that admittedly NC: 2024:KHC-K:7412 Padmavva is the first wife and she married Revanasiddappa when she was minor and there was no dissolution of marriage between Revanasiddappa and plaintiff No.1 and two children are born from the said marriage and the alleged marriage with Neelamma is void marriage as the first marriage of Revanasiddappa with Padmawa was not dissolved by any decree of divorce. Thus, he would contend that the First Appellate Court is justified in allowing the appeal and decreeing the suit.

11. It is also further submitted that in the cross examination, defendant No.2 has admitted that his father is Channappa and he is born from the relationship of Chanappa with Neelamma and this being the position, the First Appellate Court is justified in decreeing the suit by setting aside the judgment and decree passed by the Trial Court.

12. This Court has considered the contentions raised at the bar and perused the records.

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13. Following substantial questions of law arise for consideration.

1. Whether the appellants are able to establish that marriage of Padmavva with Revanasiddappa was void and Nelamma is legally wedded wife of Revanasiddappa.?

2. Whether the children from void marriage are entitled to equal share in the coparcenary property along with children from valid marriage?

14. It is forthcoming from the records that plaintiff no.1 married RevanaSiddappa during her minority. Section 5 of the Hindu Marriage Act, 1955 lays down the conditions for a valid marriage. Under Section 5(iii) the bridegroom must have completed the age of 21 years and the bride must have completed the age of 18 years at the time of marriage. This is one of the conditions to be fulfilled for a valid marriage. In addition to that, there are NC: 2024:KHC-K:7412 several other conditions which are not relevant for adjudication of the case on hand.

15. Section 11 of the Act of 1955 deals with void marriage and Section 12 deals with voidable marriage. Section 11 provides that in case any of the conditions specified in clauses (i), (iv) and (v) of Section 5 is violated and the said marriage is void, Section 12 deals with voidable marriages and enumerates the conditions under which the marriage can be declared as voidable at the instance of

one of the parties to the marriage.

16. As can be seen from Section 11, the marriage becomes void if any of the conditions specified in clauses

(i), (iv) and (v) of Section 5 is violated. Under clause (i), the time of marriage the party to the marriage shall not have a spouse living at the time of marriage and under clause (iv) the parties should not be within the prohibited degrees of relationship unless the custom or usage governing each of them permits of a marriage between the two and under clause (v) the parties are not sapindas of

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NC: 2024:KHC-K:7412 each other, unless the custom or usage governing each of them permits of a marriage between the two. Admittedly, in this case any of the conditions referred to above are not violated.

17. Section 13(2)(iv) is also relevant. As can be noticed from the said clause, in case if the marriage has taken place when the wife is minor, then the option is given to the minor to repudiate the marriage after attaining the age of 15 years, but before attaining the age of 18 years. In that case it can be a ground for seeking dissolution of the marriage 13(2)(iv) itself provides that the wife who is married when she was minor can seek dissolution of marriage. Thus, it goes without saying that the law recognizes such marriage as a valid marriage as long as the minor does not seek dissolution of marriage on the ground that she was married when she was minor.

18. Admittedly in this case, plaintiff No.1 has not sought dissolution of her marriage after attaining majority. This being the position, this Court is of the view that

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NC: 2024:KHC-K:7412 plaintiff No.1 is the first wife and defendant No.3 becomes the second wife.

19. The rights of children born from void marriage is now settled by the Hon'ble Apex Court in the case of are REVANNASIDDAPPA AND ANOTHER vs MALLIKARJUN AND OTHERS ((2011)11 SCC 1). In terms of the law laid down by the Apex Court in the said case, the children born from void marriages are entitled to succeed to the self acquired property of the father and they do not acquire the right in the co-parcenary property along with the children born from valid marriage.

20. This being the position, defendants No.2 and 3 do not acquire any right over the property along with the children from the first marriage viz., plaintiffs No.2, 3 and defendant No.4. However, the children born from the void marriage are entitled to claim share in the property of the father. When the suit was filed, Revanasiddapa had 1/4th share and plaintiff's No.2 and 3 had one fourth share each and plaintiff No.1 being the wife is entitled to claim share

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NC: 2024:KHC-K:7412 in the property when there is a partition between father and son. Thus, plaintiff No.1 will also have 1/4 share.

21. Revanasiddaiah died during the pendency of this appeal leaving behind 1/4th share in coparcenary property. His 1/4th share in coparcenary property will devolve upon all the three surviving heirs of Revanasiddappa viz., defendant No.4, plaintiffs No.1 and 2. Thus, plaintiff No.1 will have 5/16th share, plaintiff No.2 will have 5/16th share and defendant No.4 will have 5/16th share and defendant No.2 will have 1/16th share in the coparcenary properties.

22. For the aforementioned reasons, impugned judgment and decree passed by the First Appellate Court are modified on account of death of Revanasiddappa during the pendency of the appeal.

23. It is noticed in the judgment of the First Appellate Court that Revanasiddappa has admitted that the property bearing survey No.97 and 97/1 which are described as Item No.4 and 5 in suit schedule are the self acquired properties of Revanasiddappa. Thus, this Court is

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NC: 2024:KHC-K:7412 of the view that plaintiffs No.1 and 2 and defendants No.2 and 4 were each entitled to 1/4th share in the aforementioned properties at Item No.4 and 5.

24. Hence, the following:

ORDER

1. The appeal is allowed in part.

2. The judgment and decree dated 04.01.2013 in RA No.88/2010 on the file of the Second Additional District Judge, Bijapur are modified.

3. The judgment and decree dated 08.04.2009 in OS No.34/2006 on the file of the Civil Judge (SR.DN.), Basavan Bagewadi are modified.

4. The suit of the plaintiffs is in OS No.34/2006 on the file of on the file of the Civil Judge (SR.DN.), Basavana Bagewadi is decreed in part.

5. Each of other plaintiffs is entitled to 5/16th share in the suit schedule properties except Item No.4 and 5 properties.

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6. Each of the plaintiffs is entitled to 1/4th share in Item No.4 and 5.
7. Defendant No.4 is entitled to 5/16th share in all the suit schedule properties except Item No.4 and 5 properties.
8. Defendant No.2 is entitled to 1/4th share in item No.4 and 5 properties.
9. Defendant No.4 is also entitled to 1/4th share in item No.4 and 5 properties.
10. No order as to costs.

Sd/-

(ANANT RAMANATH HEGDE) JUDGE KBM/BRN List No.: 1 Sl No.: 43/CT:PK